

dew theory

S K I N — C A R E

Consumer Health Data Privacy Policy

Legal Policy

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DOCUMENT DT-LEGAL-009

EFFECTIVE DATE · UPON APPROVAL, TRIGGER ANALYSIS AND PUBLICATION

LAST UPDATED · AUGUST 15, 2026

DEWTHEORYCO.COM

CONDITIONAL — DO NOT PUBLISH UNTIL APPLICABLE
CONDITIONAL / GEOGRAPHIC AND PROCESSING TRIGGER REQUIRED

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STATUS

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PUBLICATION / USE

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Conditional status. Dew Theory's virtual-consultation and intake concepts can involve information about skin condition, medication or prescription skincare, treatment history, allergies/reactions, hormonal or pregnancy-related information, lifestyle factors and facial photographs. Depending on consumer residence and the production workflow, that information can fall within state consumer-health-data laws outside HIPAA. This policy is drafted for rapid deployment but must not be published as a claim of statutory applicability until Dew Theory confirms its service territory, consumers and data flow.

1. Scope

This Consumer Health Data Privacy Policy supplements the general Dew Theory Privacy Policy when Dew Theory is subject to a law that specifically regulates consumer health data, including Washington's My Health My Data Act or another law with materially similar requirements.

For purposes of an applicable statute, statutory terms such as "consumer health data," "collect," "share," "sale," "processor," "affiliate," and "authorization" have the meanings assigned by that law. If this Policy conflicts with a mandatory statutory requirement, the statute controls.

2. Current HIPAA classification

Based on the public business facts reviewed as of August 15, 2026, Dew Theory appears to operate as a skincare retailer and aesthetic-service/consultation business rather than as a HIPAA covered entity or business associate. Collection of sensitive skin or medication information does not by itself make a business HIPAA-regulated. This classification must be revisited if Dew Theory begins conducting covered healthcare transactions or handling protected health information on behalf of a HIPAA covered entity.

3. Consumer health data Dew Theory may collect

If the applicable intake or service is activated, consumer health data may include:

- skin condition, concerns, symptoms or characteristics described by the consumer;
- acne/breakout history, irritation, redness, sensitivity or product-reaction information;
- allergies or sensitivities;
- current or prior aesthetic treatments and relevant procedures;
- medications, prescription skincare or active ingredients disclosed for safety/recommendation purposes;
- pregnancy-related, hormonal or reproductive information only if actually asked and relevant to a lawful service;
- lifestyle information that may be used to infer physical or skin condition, such as stress, sleep, hydration or diet-related responses;
- facial photographs, video or other visual information used to assess skin appearance;
- product-use and reaction history;
- derived or inferred information about the consumer's physical condition or skincare needs; and
- records of recommendations or treatment-suitability decisions that reveal or infer health-related information.

Dew Theory should not collect categories that are unnecessary for the service.

4. Sources

Dew Theory may obtain consumer health data directly from the consumer; from a parent/legal guardian acting with authority; from photographs or video intentionally supplied by the consumer; from service records created during a Dew Theory consultation or treatment; and from service providers that process the information solely to support Dew Theory's disclosed service.

Dew Theory should not acquire consumer health data from data brokers, advertising networks or unrelated third-party sources without a new legal review and any consent required by law.

5. Purposes of collection and use

Subject to any consent required by law, Dew Theory may collect or use consumer health data to:

- prepare for and provide a requested aesthetic consultation or lawful service;
 - evaluate whether a requested treatment or product recommendation appears suitable within the provider's lawful scope;
 - identify disclosed contraindication or sensitivity information that may affect aesthetic service delivery;
 - develop a cosmetic skincare routine or product recommendation;
 - provide client support and follow-up;
 - document consent and service history;
 - maintain security and prevent abuse; and
 - comply with law or establish/defend legal claims where permitted.
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Dew Theory should not use consumer health data for targeted advertising, unrelated profiling, data brokerage or a materially different purpose without the additional disclosure and consent required by applicable law.

6. Consent before collection or sharing

Where required, Dew Theory must obtain consent that is separate from general Terms of Use acceptance before collecting or sharing consumer health data. The request should disclose the categories of data, purpose of collection/use, categories of entities with whom data will be shared, how the consumer can withdraw consent and any other statutory element.

A consent must not be obtained through a dark pattern. It should be specific, freely given and unbundled from optional marketing permission.

Suggested collection consent when the Washington statute applies, subject to counsel verification:

I consent to Dew Theory collecting and using the consumer health data described in the Consumer Health Data Privacy Policy for the purpose of preparing for and providing my requested aesthetic skincare consultation or service, evaluating nonmedical service suitability, and developing my skincare recommendations. I understand I may withdraw this consent as described in that Policy.

If Dew Theory proposes a new purpose or materially different category, it should obtain additional consent before that processing when required.

7. Sharing and processors

Consumer health data may be shared with processors only as reasonably necessary to provide the requested service and under contracts appropriate to applicable law. Potential categories may include secure hosting/storage, booking, video, transactional communications and professional advisers, but the published policy should name or categorize only providers that are actually configured in production.

[TO CONFIRM: production hosting/storage, booking, video, email and other processors that receive consumer health data.]

Dew Theory should maintain a processor/subprocessor register and contract review for any system touching consumer-health-data records.

8. Sale

Dew Theory should not sell consumer health data. If any future transfer could constitute a statutory sale, Dew Theory must complete a separate legal review before the transfer and obtain the specific written authorization required by applicable law. General website Terms or a blanket privacy checkbox are not a substitute for a statutory sale authorization.

9. Consumer rights

Where an applicable consumer-health-data law grants rights, a consumer may be entitled to:

- confirm whether Dew Theory is collecting, sharing or selling consumer health data;
- access the data;
- receive information about sources and recipients as required;
- withdraw consent;
- request deletion, including downstream deletion steps required by law;
- exercise other rights provided by the applicable statute; and
- appeal a denial where an appeal right applies.

[BUSINESS DECISION REQUIRED: privacy/health-data request email or web form, identity-verification method, appeal channel and internal response owner.]

10. Deletion

When a valid deletion request applies, Dew Theory should delete covered consumer health data from active systems and take any required steps with processors, affiliates or other recipients, subject to statutory exceptions and technically reasonable backup handling. The exact workflow should be documented before the collection flow goes live.

11. Withdrawal of consent

Consumers may withdraw consent through the published health-data/privacy request channel. Withdrawal is prospective and may affect Dew Theory's ability to provide a service that genuinely requires the data. Dew Theory should distinguish inability to provide the core service from optional marketing or unrelated uses that should not be required for service.

12. Security

Dew Theory should use safeguards appropriate to the sensitivity of consumer health data, including least-privilege access, private storage, secure transmission, restricted administrative access, vendor diligence, secrets management, access logging where appropriate, incident response and secure deletion processes.

13. Retention

[BUSINESS DECISION REQUIRED: approve a documented retention period for intake, service-use photographs, consultation notes, treatment records, recommendations, consent evidence and request logs.]

Retention should be no longer than reasonably necessary for the disclosed purpose, legal obligations and legitimate recordkeeping.

14. Changes

Material changes affecting the collection, use, sharing or sale of consumer health data should be reviewed before implementation. Additional consent must be obtained where required before applying a materially different practice.

15. Contact

Consumer-health-data requests and questions: **[BUSINESS DECISION REQUIRED: dedicated or monitored privacy/health-data contact.]**